

ASBE VS. ROBBINS

CASE NUMBER: 26APSC-0005

Tentative Ruling on Motion to Set Aside Judgment: Defendant John Robbins moves to set aside the judgment entered against him following Defendant's nonappearance at a trial de novo on March 30, 2026. Despite being properly noticed of today's hearing, Plaintiff Kelly Asbe did not file an Opposition.

Defendant moves under CCP § 437(b) to have the judgment set aside because the Notice of Appeal contained an incorrect address for Defendant, which resulted in the Notice of Hearing being mailed to the wrong address. The Notice of Hearing was returned to the court as undeliverable and Defendant and his counsel have declared that they had no notice of the hearing date until after judgment was entered. CCP § 473(b) reads, in part, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." The typographical error in the Notice of Appeal, filed by Defendant, was a mistake that resulted in a judgment being taken against Defendant. Defendant had no notice of the hearing date for the trial de novo on March 30, 2026. Once Defendant learned that a judgment had been entered against him, he acted diligently in seeking to have the judgment set aside.

The motion is **GRANTED**. The judgment entered on March 30, 2026, is set aside pursuant to CCP § 473(b). The parties are ordered to appear to set a new hearing date for the trial de novo. If both parties do not appear, the Court will select a hearing date. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

BANK OF AMERICA, N.A. VS. METZGER

CASE NUMBER: 25CVG-00681

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement: Plaintiff Bank of America, N.A. seeks to vacate the dismissal entered on July 22, 2025, and enforce the Stipulation Agreement filed on July 7, 2025. Despite being properly noticed, Defendant Lauren Adriana Marie Metzger did not file an Opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed in this matter on July 7, 2025. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation Agreement filed with the Court on July 7, 2025, was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,334.98 which consists of \$6,791.37 in principal and \$543.61 in costs. The agreement calls for a payment of \$488.98 on or before April 29, 2025, followed by minimum monthly payments of \$489 starting May 29, 2025, until fully paid. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Anthony DiPiero establishes that Defendant has paid a total of \$4,889.98 and has not made a payment since January 25, 2026. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests entry of judgment in the amount of \$2,505.00 which includes remaining principal in the amount of \$1,901.39 and court costs in the amount of \$603.61. While the Memorandum of Costs filed on May 7, 2026 includes \$603.61 in costs, the parties stipulated to a specific amount of \$543.61 for costs, not costs pursuant to a Memorandum of Costs. Therefore, the judgment will be \$2,445.00 which is comprised of the remaining principal and costs in the amount of \$543.61.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$2,445.00. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

IN RE: CARTER

CASE NUMBER: 26CV-0210136

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Michael Wilson Carter seeks to change his name to Michael Sea. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

CHATHA, ET AL. V. TORNADO ALLEY TURBO, INC., ET AL.

CASE NUMBER: 22CV-0200483

Tentative Ruling on Petition to Approve Minor's Compromise: This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Amitoj Sandhu's claims. The Petition was filed by the minor's mother/Guardian Ad Litem Sakhjit Sandhu. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. A hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court finds good cause to excuse the appearance of the minor. The Court will ask counsel to voir dire Petitioner regarding the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order Approving Compromise that was received on May 27, 2026. **An appearance by the Petitioner is necessary on today's calendar.**

FALL RIVER VALLEY VOLUNTEER FIRE DEPARTMENT, ET AL. VS. FALL RIVER VALLEY FIRE PROTECTION DISTRICT, ET AL.

CASE NUMBER: 24CV-0206286

Tentative Ruling on Motion for Judgment on the Pleadings: Defendants Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan move for judgment on the pleadings pursuant to CCP § 438(c)(1)(A). Plaintiffs Fall River Valley Volunteer Fire Protection Department and McArthur Volunteer Fire Department, Inc. oppose the Motion.

Meet and Confer. CCP § 439(a) requires the moving party to meet and confer before filing a motion for judgment on the pleadings. The moving party shall file a declaration showing the meet and confer efforts. CCP § 439(a)(3). The Declaration of John Kenny satisfies this requirement.

Request for Judicial Notice. Defendant requests the Court take judicial notice of Shasta Local Agency Formation Commission Resolution 2020-09 and Fall River Valley Volunteer Fire Department's California Secretary of State Corporation filing dated 3/18/22. The request is denied. The request was made on May 22, 2026, along with the Reply brief. Considering these materials would be prejudicial to Plaintiff, who did not have the opportunity to oppose.

Merits of Motion. CCP § 438(c)(1)(A) provides a plaintiff may move for judgment on the pleadings if the complaint states sufficient facts to constitute a cause of action and the answer does not state facts sufficient to constitute a defense to the complaint. The grounds for the motion shall appear on the face of the challenged